

FEDERAL MARITIME COMMISSION

CROCUS INVESTMENTS, LLC &
CROCUS, FZE,

Complainants,

v.

MARINE TRANSPORT LOGISTICS,
INC. AND ALEKSANDR SOLOVYEV
D/B/A ROYAL FINANCE GROUP,
INC.,

Respondents.

Docket No. 15-04

Served: May 2, 2018

BY THE COMMISSION: Michael A. KHOURI, *Acting Chairman*, Rebecca F. DYE and Daniel B. MAFFEI, *Commissioners*.

**ORDER GRANTING RESPONDENTS' MOTION TO
WITHDRAW AND DENYING COMPLAINANTS' CROSS-
MOTION TO SUSPEND RESPONDENTS' COUNSEL**

Counsel for Respondents Marine Transport Logistics, Inc. (Marine Transport) and Aleksandr Solovyev move to withdraw their representation on the grounds that Respondents have failed to pay

substantial legal bills, fundamentally disagree with counsel's recommendations, and refuse to consider or follow their legal advice. Respondents do not contest counsel's motion to withdraw. Complainants responded with a cross-motion to suspend Respondents' counsel from practicing before the Commission for a minimum of six months for allegedly misrepresenting facts and altering evidence.

The Commission grants Respondents' counsel leave to withdraw because they have demonstrated good cause for terminating their representation under Rule 23 of the Commission's Rules of Practice and Procedure and Rule 1.16 of the American Bar Association (ABA) Model Rules of Professional Conduct. Any further filings by Complainants are suspended for a period of 60 days or until new counsel enter their appearance on Respondents' behalf, whichever occurs first.

The Commission denies Complainants' cross-motion as unsupported by facts or credible evidence. We further note the filing of this cross-motion arguably violates the Commission's Rules of Practice and Procedure, 46 C.F.R. § 502.6, and counsel's obligations under the American Bar Association (ABA) Model Rules of Professional Conduct. Mr. Nussbaum is hereby directed not to file any pleading, motion or other document that does not meet the § 502.6 verification requirements or fails to comply with the ABA Model Rules. Further violation of these rules may result in sanctions by the Commission.

I. BACKGROUND

A. Factual Background

All of the claims relate to storage and transportation arrangements for Complainants' three boats. Complainants, Crocus Investments, LLC, and Crocus, FZE, allege that Respondents overcharged them and transferred custody of the boats to a storage facility without their consent, all in violation of 46 U.S.C.

§ 41102(c) (section 10(d)(1) of the Shipping Act of 1984). They also allege that Mr. Solovyev violated 46 U.S.C. § 40901(a) (section 19(a) of the Shipping Act) by providing ocean freight forwarder services without a license from the Commission. Two boats (a Monterey and Chaparral) were transported to Dubai, United Arab Emirates, and later shipped back to the United States and stored in a New Jersey warehouse. Marine Transport arranged the outbound transportation to Dubai but was involved only as the consignee in shipping the boats back to the United States. Complainants' third boat (a Formula) never left a New Jersey warehouse after they decided against shipping it to Dubai.

Crocus is in the business of buying boats that it repairs and resells overseas through an affiliated company, Middle East Asia Alfa, FZE (Middle East), which has facilities in Dubai, United Arab Emirates. Initial Decision (I.D.) at 2-3. Aleksandr Solovyev owns Car Express & Import, Inc. (Car Express), a company that buys vehicles and boats for its customers and arranges to have them transported overseas. *Id.* at 3. Crocus's owner, Alexander Safonov, retained Mr. Solovyev's services and through him made arrangements to purchase, store, and transport boats that Crocus intended to resell overseas. *Id.* Mr. Solovyev stored Crocus's boats in a New Jersey warehouse operated by World Express & Connection, Inc. (World Express), a company which he also owns. *Id.* Billing and financial arrangements were made through another Solovyev-owned business, Royal Finance. *Id.* Royal Finance advances payments on its customers' behalf to make purchases and pay transportation charges. *Id.* Transportation was arranged using the NVOCC services of Marine Transport which is owned solely by Mr. Solovyev's estranged wife, Alla Solovyeva. *Id.* at 3. At times, Mr. Solovyev, or one of his companies, acted as Marine Transport's agent. *Id.* at 12 (Finding No. 28).

B. Procedural History

Crocus filed this action in May 2015 seeking \$416,739 in reparations for Respondents' alleged violations of §§ 40901(a) and 41102(c). Compl. ¶¶ 28-31.¹ After discovery, the parties briefed their respective positions, and the ALJ heard closing arguments in May 2016. See Order to Appear by Telephone May 13, 2016, for Closing Argument, May 5, 2016. On June 17, 2016, the ALJ issued the Initial Decision dismissing the complaint with prejudice. I.D. at 19-27.

The ALJ dismissed all claims related to the Formula on jurisdictional grounds because the parties never entered into a contract to ship that particular boat overseas. *Id.* at 26. The ALJ also dismissed the § 41102(c) claims related to inquiries about shipping all three boats from New Jersey to Florida as outside the Shipping Act's jurisdiction. *Id.* at 24-26. All remaining claims were dismissed with prejudice on the merits. *Id.* at 27.

Late in June 2016, Complainants' original counsel, Ms. Louiza Tarassova, was granted leave to withdraw from the case and their current counsel, Marcus A. Nussbaum, entered his appearance. See Mot. for Leave to Withdraw, June 29, 2016. In October 2016, Crocus petitioned to reopen the proceedings to submit further evidence and sought additional time to file exceptions. Complainants' Pet. to Reopen the Proceedings, Oct. 28, 2016. The Commission denied the petition to reopen but extended the exceptions deadline. Mem. Op. & Order, Mar. 6, 2017. Complainants filed timely exceptions challenging the ALJ's findings on both Shipping Act claims. Complainant's Br. in Support of its Exceptions (Exceptions), Mar. 13, 2017. Respondents timely replied to the Exceptions. Reply to Exceptions (Reply), Apr. 4, 2017.

¹ The only monetary damages that Complainants specifically allege is \$5,500 they claim represent overcharges for port fees, customs fees, and other expenses. See Compl., ¶ 22.

On September 27, 2017, Complainants filed their second petition to reopen the proceedings and their first request to join the Commission's Bureau of Enforcement (BOE) as a party. Complainants stated that documents they obtained in July 2017 discredited Respondents, showed that they falsified evidence, and supported two claims dismissed by the ALJ. Respondents timely filed a reply opposing the petition.

The ALJ dismissed for lack of jurisdiction all claims that arose when the boats were stored in the United States and not in transit or under contract to be transported overseas. I.D. at 2-16. The ALJ dismissed the remaining claims on substantive grounds. The ALJ found that Respondents acted reasonably in taking custody of the Monterey and Chaparral and transferring them into storage when they arrived back from Dubai and did not violate § 41102(c). The ALJ also determined that the licensing claim against Mr. Solovyev had no merit because, as Marine Transport's agent, he did not require a license from the Commission. Complainants filed timely exceptions to the Initial Decision, and Respondents filed their reply.

In February 2018, Respondents' counsel, Stephen H. Vengrow, Esq., and Eric Chang, Esq., of Montgomery McCracken Walker & Rhoads, LLP, moved to withdraw from the case and served their clients with the motion by email and United States mail. Mot. to be Relieved as Counsel for Respondents (Resp'ts' Counsel's Mot.), Feb. 22, 2018. Marine Transport and Mr. Solovyev did not respond to counsel's motion. Complainants' counsel, Marcus A. Nussbaum, responded by filing a cross-motion to suspend Respondents' counsel from practicing before the Commission for six months because counsel allegedly altered evidence to mislead the Commission. Complainants' Cross-Mot. for an Order to Show Cause as to Why the Commission Should Not Suspend Eric Chang, Esq. from Practicing before the Commission for a Period of Not Less than Six Months and Resp. to Mot. to be Relieved as Counsel (Cross-Mot.), Mar. 1, 2018. In their reply, Respondents' counsel vigorously deny as baseless Mr. Nussbaum's accusations of fraud

and misrepresentation. Resp'ts' Resp. to Marcus A. Nussbaum's Frivolous Cross-Mot., Mar. 8, 2018.

III. DISCUSSION

A. Motion to Withdraw by Respondents' Counsel

Respondents' counsel move to withdraw because Respondents have failed to pay overdue legal bills despite repeated warnings that failure to pay would lead to counsel withdrawing their representation. Resp'ts' Counsel's Mot., 2.² Counsel explain that Respondents also fundamentally disagree with their litigation strategy and have refused to consider or follow legal advice. *Id.* Counsel served Respondents with the motion to withdraw on the date of filing, *id.* at 4, but Respondents have not filed an opposition statement disputing counsel's stated reasons for moving to withdraw.

Under Commission Rule 23, counsel seeking leave to withdraw without their client's consent when the client is not "otherwise represented" must demonstrate "appropriate reasons" for allowing counsel to withdraw. 46 C.F.R. § 502.23(e). Granting leave to withdraw is subject to the Commission's discretion. *See generally Brandon v. Blech*, 560 F.3d 536, 537 (6th Cir. 2009) (leave to withdraw legal representation subject to judicial discretion).

Rule 23 cites the factors set forth in ABA Rule 1.16 as the governing standard. § 502.23(e); *Crocus Investments, LLC v. Marine Transport Logistics, Inc.* (Crocus Opin.), Docket No. 15-04, slip op. (FMC Jul. 14, 2016) (applying ABA Rule 1.16 factors in granting Complainants' prior counsel leave to withdraw). Rule 1.16

² Mr. Vengrow and Mr. Chang also represent Marine Transport in *MAVL Capital, Inc.*, *IAM & AL Group Inc.*, and *Maxim Ostrovskiy v. Marine Transport Logistics, Inc.* and *Dimitry Alper (MAVL-FMC)*, Docket No. 16-16. Mr. Alper is represented by separate counsel. Mr. Vengrow and Mr. Chang have moved to withdraw from that case as well, and the Commission will address that motion in a separate order.

lists the following as circumstances that can justify withdrawing representation: (1) absence of material, adverse impact on the client's interests; (2) client's insistence on "taking action" with which counsel fundamentally disagrees; (3) client's failure "substantially to fulfill an obligation to the lawyer regarding the lawyer's services" despite receiving "reasonable warning that the lawyer will withdraw unless the obligation is fulfilled;" (4) continuing representation will impose an unreasonable financial burden on counsel or has been made "unreasonably difficult" by the client; and (5) when "other good cause for withdrawal exists." *Id.*

Respondents' counsel cite multiple Rule 1.16 grounds for terminating their representation. Resp'ts' Counsel's Mot., 2. First, Respondents are four months in arrears in paying substantial fees for services provided in this case and other matters. *Id.* Counsel contend that continuing to provide legal services without compensation would financially burden their firm. *Id.* The attorney/client relationship is contractual, and clients' failure to pay for legal services violates the basic terms of that contractual arrangement. *See Hammond v. T.J. Little and Co.*, 809 F. Supp. 156, 159 (D. Mass. 1992). By failing to pay for services rendered, Respondents have not met their contractual responsibility. *See, e.g., Lieberman v. Polytop Corp.*, 2 Fed. Appx. 37, 39 (1st Cir. 2001) (client owing substantial fees failed to meet contractual obligation); *Honda Power Equip. Mfg., Inc. v. Woodhouse*, 219 F.R.D. 2, 6 (D.D.C. 2003) (counsel justified in withdrawing when client is unresponsive and in arrears).

Second, counsel state that Respondents fundamentally disagree with counsel's recommended legal strategy and are not willing to consider or follow their advice. Resp'ts' Counsel's Mot., 2. A client's refusal to follow advice and substantial disagreement on how to proceed are sound reasons for withdrawing representation. *See, e.g. Sabre Int'l Sec. v. Torres Advanced Enter. Sols., LLC*, 219 F. Supp. 3d. 155, 158-59 (D.D.C. 2016). Finally, Respondents will not be prejudiced by counsel withdrawing at this stage of the proceedings. There are no impending deadlines that require counsel's preparation or assistance. The motions addressed

in this memorandum and Complainants' exceptions have been fully briefed. *Cf. Spann v. N.C. Dep't of Pub. Safety*, No. 1:17-cv-104, 2017 U.S. Dist. LEXIS 200732 (W.D.N.C. Dec. 6, 2017) (denying motion to withdraw representation because responsive pleadings were due within days). Finally, Complainants do not assert any basis for denying counsel's motion to withdraw *See Cross-Mot.*, p. 2.

The Commission grants counsel's motion to withdraw as justified under ABA Rule 1.16 and Commission Rule 23. *See Crocus Opin.*, slip op. at 2 (citing clients' lack of cooperation and failure to meet obligations and absence of material prejudice as grounds for allowing counsel to withdraw). To avoid any potential prejudice to Respondents, all filings by Complainants in this matter are hereby suspended for the next 60 days or until Respondents' new counsel enter their appearance, whichever occurs first.

B. Cross-Motion for an Order to Show Cause to Suspend Respondents' Counsel

1. Allegations of Misconduct by Complainants' Counsel are Unsupported

Attorneys admitted to practice before the Commission are "expected to conform to the standards of conduct set forth in the ABA Model Rules of Professional Conduct" and the Commission's Rules of Practice and Procedure. 46 C.F.R. § 502.26. ABA Model Rule 3.3 imposes a duty of candor toward the tribunal and states in particular, that a lawyer "shall not knowingly:"

(1) *make a false statement of fact or law to a tribunal* or fail to correct a false statement of material fact or law previously made to the tribunal by the lawyer; [or]

(3) *offer evidence that the lawyer knows to be false.* If a lawyer, the lawyer's client, or

a witness called by the lawyer, has offered material evidence and the lawyer comes to know of its falsity, the lawyer shall take reasonable remedial measures, including, if necessary, disclosure to the tribunal . . .

Id. (emphasis supplied). ABA Model Rule 3.4 addresses counsel's obligations of fairness to opposing parties and their counsel and states that a lawyer shall not "falsify evidence" or "counsel or assist a witness to testify falsely." *Id.* Alleged violations of the Model Rules must be proved by "clear and convincing evidence." *In re Liotti*, 667 F.3d 419, 426 (4th Cir. 2011) (citing ABA Standards § 1.3).

Complainants do not clearly articulate a legal basis or factual support for their theory that Respondents' counsel altered evidence and intentionally misled the Commission. *See* Complainants' Cross-Mot., 2-6. Much of the discussion in the Cross-Motion is Complainants' interpretation of disputed facts, disparate statements, and interactions in other matters involving different claims and other parties and, in some cases, even different counsel. *See id.* at 2-5. Complainants discuss in some detail events that allegedly occurred in connection with: (1) *MAVL Capital, Inc., v. Marine Transport Logistics, Inc.*, (MAVL-FMC), Docket No. 16-16 (FMC) (alleged Shipping Act violations involving a Mercedes and Porsche); ³ (2) *MAVL Capital, Inc. v. Marine Transport*

³ Complainants have previously confused the claims in this case with those presented in *MAVL-FMC*. The Commission pointed out their error in denying their motion to reopen the proceedings:

Complainants state that there are also pending claims in this action based on the storage and transport of two automobiles (a Porsche and a Mercedes), but that is not accurate . . . there are no claims involving automobiles in this action.

Mar. 6, 2017 Order at 6 n. 2 (emphasis supplied).

Logistics, Inc. (MAVL-EDNY), No. 13-CV-7110 (E.D.N.Y.) (alleged Shipping Act and RICO⁴ violations and state law claim); and (3) *World Express & Connection, Inc. v. Crocus Investments, LLC (World Express-DNJ)*, No. 2:15-CV-08126 (D.N.J.) (action to recover unpaid storage fees).

What we infer from the Complainants' discussion about this case and the other matters is this: Complainants claim Respondents' counsel misled the Commission about the purpose of a \$3,500 wire transfer and allegedly added a handwritten phrase to a bank statement to perpetuate this falsehood. Complainants' Cross-Mot., 4-5. This argument lacks credible support.

First, there is no evidence that the bank statement was actually "altered" by anyone, let alone by Respondents' counsel. All that Complainants point to is a bank statement bearing the handwritten phrase "Middle East Asia" next to an entry for \$4,950. (Apparently the \$3,500 payment was allegedly part of the \$4,950 total.)⁵ *Id.* Complainants do not identify any evidence as to who inscribed the phrase, let alone why some unknown person wrote this phrase on the document. *See id.* It could have been written by anyone with access to the statement simply to record the purpose of the payment or for some other wholly legitimate reason.

⁴ Racketeer Influenced and Corrupt Organizations Act, 18 U.S.C. § 1961, *et seq.*

⁵ As the ALJ states in describing the facts leading up to these proceedings, the parties refer to at least two different \$ 3,500 transactions. *See I.D.* at 5. Royal Finance, which handled Crocus's accounts and billing, issued three different invoices all bearing the same invoice number and each indicated a \$3,500 charge for delivering the Formula to the port of loading. *Id.* On August 9, 2013, Crocus wired funds to Royal Finance that covered the \$ 3,500 delivery charge for the Formula. *Id.* As the ALJ also noted, Royal Finance later issued three separate invoices, all dated December 3, 2013, and all bearing the same number, apparently related to the purchase of a boat trailer for the Formula. *Id.* Two of the December 3, 2013 invoices listed a \$4,950 charge for a boat trailer, which Crocus apparently paid on December 4, 2013. *See id.*

Second, the testimony that Complainants point to as “evidence” of counsel’s involvement in adding the notation means nothing. *See id.* at 5. They claim that deposition testimony from Dimitry Alper of Marine Transport supports their argument. *Id.* Mr. Alper was deposed in *World Express-DNJ*. *Id.* Respondents’ counsel do not represent Marine Transport in that case and were not Mr. Alper’s counsel at the deposition. *See Resp’ts’ Counsel’s Resp.*, 4. All that Mr. Alper stated was that he did not recognize the handwriting and could not say who made the notation. *See Complainants’ Cross-Mot.*, 4-5. That is scarcely evidence that counsel added the notation, and even Complainants seem to concede as much. *See id.* Complainants frame their argument as a hypothetical and invite the Commission to speculate about whose handwriting appears on the document, stating: “Mr. Alper’s testimony begs the ultimate question as to who altered that piece of evidence with a handwritten notation--Mr. Chang or Mr. Vengrow?” *Id.* at 5. This statement crystallizes Complainants’ argument—it is nothing more than speculation built on a false premise or unsupported assumption that opposing counsel must have acted improperly.

Third, Complainants argue that Respondents’ counsel have made contradictory statements about the \$4,950 payment—linking it to a boat trailer purchase in this case and to the sale/purchase of a Mercedes and a motorcycle in the New York district court action. *Id.* at 4-5.⁶ Conflicting explanations do not prove that Respondents’ counsel altered the bank statement to mislead the Commission.⁷

⁶ In their Cross-Motion, Complainants do not identify where or when Respondents linked the \$4,950 statement entry (\$3,500 payment) to the boat trailer purchase in this case. *See id.* And Respondents do not directly admit or deny linking the same payment to two separate transactions. *See Resp’ts’ Counsel’s Resp.*

⁷ The United States District Court for the Eastern District of New York addressed allegations that Marine Transport made contradictory representations in that court and before the FMC in *MAVL Capital, Inc. v. Marine Transport Logistics, Inc.*, No. 13-cv-7110 (PKC) (RLM), 2018 U.S. Dist. LEXIS 49927, at *22-25

The parties' informality in conducting their business dealings is an equally, if not more, plausible explanation for the alleged inconsistencies. The ALJ found, and the evidence shows, that the principals and agents of both Crocus (Mr. Safonov) and Marine Transport (Mr. Solovyev) conducted their dealings informally and were not particularly diligent about observing corporate formalities. *Id.* at 3. Both parties transacted their business through multiple corporate entities. As the ALJ explained:

Solovyev used his corporation Car Express to purchase the boats from Copart for Safonov, used his corporation [Royal Finance] to send invoices for the purchase and other costs, used his corporation World Express to store the boats, and arranged for shipping to Dubai in his role as agent for MTL.

(E.D.N.Y. Mar. 26, 2018). In that case, Plaintiffs (represented by Mr. Nussbaum) moved for discovery sanctions under Fed. R. Civ. P. 37(c) and Defendants (represented by Mr. Chang and Vengrow) cross-moved for Rule 11 sanctions based on Plaintiffs' Rule 37 motion. *Id.*

Plaintiffs argued that Defendants had, among other things, misrepresented how they had disposed of the Mercedes at issue in that case and sought reinstatement of their dismissed RICO claim on that basis. *Id.* at *22-23. The court declined to sanction Defendants' stating that:

While defense counsel's failure to alert Plaintiffs to the later contradictory representation by Defendants in the FMC and/or Crocus action regarding the disposition of the Mercedes was careless, the Court accepts defense counsel's explanation that the error was unintentional and not intended to commit a fraud upon Plaintiffs o[r] the Court.

Id. at *23-24. The court also denied Defendants' Rule 11 motion to sanction Plaintiffs for filing a meritless Rule 37 motion. Noting that Rule 11 sanctions are "reserved for extraordinary circumstances" and that Defendants or their counsel "caused" the Rule 37 motion, the court denied Defendants' Rule 11 motion. *Id.* at *24-25.

Id.

The ALJ cited examples of the parties either misidentifying information or using the wrong corporate identity in carrying out their dealings. As the ALJ recounted: “For instance, Safonov formed Middle East Asia to purchase used boats in the United States to be shipped overseas for repair and sale in Dubai, but Crocus FZE or Crocus Investments, not Middle East Asia, paid for the boats and their transportation.” *Id.* Ultimately, the ALJ simply used the names of both individuals (Safonov and Solovyev) as proxies for their “corporate identities” because the corporate interactions were so intertwined and there was so much confusion as to which company was responsible for particular transactions. *See id.*

It is certainly plausible, if not probable, that Mr. Safonov and Mr. Solovyev were equally casual in transcribing or maintaining their transactional records and certainly reasonable to infer that Mr. Solovyev or someone else at one of his companies confused entries or made inconsistent notations about a particular \$3,500 or \$4,950 transaction and forwarded that information to counsel without realizing there was an error. Given the circumstances, inadvertent error is certainly as plausible or more plausible than deliberate fraud.

For the foregoing reasons, Complainants’ Cross-Motion is denied.

2. Complainants’ Counsel is Advised of the Requirements of 46 C.F.R. § 502.6 and ABA Model Rule 3.1.

Counsel practicing before the Commission must comply with ABA Model Rule 3.1 and are held to the same verification standards as counsel practicing in the federal courts. 46 C.F.R. § 502.6. ABA Rule 3.1 require counsel to ensure that claims and arguments have a non-frivolous “basis in law and fact.” Under § 502.6, all pleadings and others documents filed in proceedings before the Commission must be signed by counsel of record if the

filing party is represented. *Id.* By signing, the attorney certifies that he has read the document and that the filing is “well grounded in fact and is warranted by existing law” (or a good faith argument for extending current law) to the best of his “knowledge, information, and belief formed after reasonable inquiry.” *Id.*

Counsel’s signature also certifies that the filing was “not interposed for any improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation.” *Id.* Willful violations of § 502.6 by counsel are subject to “appropriate disciplinary action” by the Commission. *Id.* Like other federal tribunals, the Commission also has inherent authority to control the proceedings and sanction misconduct when appropriate. *See Chambers v. NASCO, Inc.*, 501 U.S. 32, 50 (1991) (federal courts’ “inherent authority” to control proceedings including sanctioning misconduct by counsel); *Fellheimer, Eichen & Braverman, P.C. v. Charter Technologies, Inc.*, 57 F.3d 1215, 1224 (3d Cir. 1995).

The allegations in Complainants’ cross-motion are arguably not “well grounded in fact” and the claims appear to be little more than speculative theory that fail to meet § 502.6 standards. *See* 46 C.F.R. § 502.6. There are no citations to credible evidence that counsel committed the egregious conduct alleged, i.e. that counsel altered evidence for the purpose of misleading the Commission. And Mr. Nussbaum comes close to admitting that nothing more than speculation underlies the motion when he argues that the Commission should decide the seminal issue by speculating that one of Respondents’ attorneys altered evidence but has no evidence that either attorney added information to the document or did so with intent to mislead anyone. *See* Cross-Mot., 4-5.

Further, Complainants’ cross-motion bears the unmistakable hallmarks of other pleadings filed by Mr. Nussbaum in this case and other proceedings before the Commission. Relying on allegations that are remarkably similar, Mr. Nussbaum has repeatedly accused Respondents and their counsel of intentional misconduct carried out to purposefully deceive the Commission or misrepresent evidence.

Mr. Nussbaum is hereby directed not to file any pleading, motion or other document that does not meet the § 502.6 verification requirements or fails to comply with the ABA Model Rules. Further violation of these rules may result in sanctions by the Commission.

III. CONCLUSION

THEREFORE, IT IS ORDERED:

- (1) Respondents' motion to withdraw representation is granted;
- (2) All filings by Complainants (except as authorized in this order) are suspended for 60 days or until new counsel enters an appearance on Respondents' behalf;
- (3) The final decision deadline, which is currently May 8, 2018, is extended by 6 months to November 8, 2018;
- (4) Complainants' motion for a show cause order suspending Respondents' counsel is denied.

By the Commission.

Rachel E. Dickon
Secretary